

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 24-13

ACCESS ONE TRANSPORT, INC.
Complainant,

v.

COSCO SHIPPING LINES CO. LTD.
Respondent.

COMPLAINANT’S RESPONSE TO RESPONDENT’S NOTICE OF POSITION

Comes now Access One Transport, Inc. (“Access” or “Complainant”) and hereby submits its response to COSCO Shipping Lines Co. Ltd.’s (“COSCO” or “Respondent”) Notice of Position Regarding Complainant’s Opposition Exceeding the Prescribed Length.

Access concedes that oppositions to non-dispositive motions are limited to 10 pages per 46 C.F.R. §502.71(d). Access offers no excuse for filing a 13 page opposition to Respondent’s motion to strike. By way of explanation, however, in an effort to file an opposition as soon as possible so that the briefing in this matter could be concluded, the page limit defect was inadvertently overlooked.

Access also appreciates the professional courtesy from COSCO’s counsel in waiving any objection to any decision by the Presiding Officer to allow the additional pages.

Pursuant to 46 C.F.R. §502.71(b), Access had until February 10, 2025 to file its opposition. Since Access is still within the seven day time period to oppose a non-dispositive motion, Access,

to comply with the page limits of Rule 71 has submitted concurrently herewith an Amended Opposition to Costco's Motion to Strike limited to 10 pages.

Date: February 7, 2025

Respectfully submitted,

Stephen M. Uthoff

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CERTIFICATE OF SERVICE

I hereby certify that on February 7, 2025, the foregoing COMPLAINANT'S RESPONSE TO RESPONDENT'S NOTICE OF POSITION has been served upon all interested persons and parties by electronic means pursuant to the below list.

Stephen M. Uthoff

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Counsel for Respondent COSCO

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